

unnecessary conflicts of laws.” [Citation.] These public and private interests are to be “applied flexibly, without giving undue emphasis to any one element.” [Citation.]

(*Fox Factory, Inc. v. Superior Court* (2017) 11 Cal.App.5th 197, 203-204.) The burden of proof is on Defendant with regard to this two-step analysis. (*Stangvik, supra*, 54 Cal.3d at 751.)

The facts in this case reflect that the private and public interest factors weigh in favor of Georgia as the proper forum. All of the parties and witnesses reside in Georgia. The fact that Maul believes that California law may apply does not change the fact that California is not a convenient forum for this action. In addition, venue in Georgia does not foreclose the application of California law if properly applicable. Determination of a more convenient venue is not a determination that Georgia law must be applied. If proper, Georgia courts may apply California law.

Defendant’s Motion to Dismiss for Improper Venue Pursuant to CCP 410.30 GRANTED.

Dismissal is conditioned upon stipulation by Defendant to a waiver of any statute of limitations and timeliness defenses that would bar Plaintiff’s claims in Georgia.

Defendant’s Revised Proposed Order submitted to the court on 8.31.26 shall be signed and approved.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2603447	GERMINARO VS GELLER	DEMURRER ON COMPLAINT OF MASSIMO GERMINARO BY MARC B GELLER, NANCUE GELLER

Tentative Ruling:

No opposition filed.

Defendants’ Demurrer to the 1st, 2nd, 3rd and 4th Causes of Action SUSTAINED with leave to amend.

Plaintiff to file amended complaint within 30 days.

Case Management Conference remains set for 11.19.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2605173	MCGLAMARY VS HALLVIEW MANAGEMENT COMPANY, INC., A CALIFORNIA CORPORATION	HEARING ON ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE) BY HALLVIEW MANAGEMENT COMPANY, INC., A CALIFORNIA CORPORATION

Tentative Ruling: No tentative ruling. Hearing continued to 9.30.26.